

**REPORT OF THE
VIRGINIA CODE COMMISSION ON THE**

**RECODIFICATION OF TITLE 15.1
OF THE CODE OF VIRGINIA**

**TO THE GOVERNOR AND
THE GENERAL ASSEMBLY OF VIRGINIA**



SENATE DOCUMENT NO. 5

**COMMONWEALTH OF VIRGINIA
RICHMOND
1997**

MEMBERS OF THE COMMISSION

Joseph V. Gartlan, Jr., *Chairman*
W. Tayloe Murphy, Jr., *Vice Chairman*
Robert L. Calhoun
Russell M. Carneal
Bernard S. Cohen
Jay W. DeBoer
Frank S. Ferguson
E.M. Miller, Jr.
Jackson E. Reasor, Jr.
James B. Wilkinson

STAFF

DIVISION OF LEGISLATIVE SERVICES

Jeffrey F. Sharp, *Senior Attorney*
Nicole R. Beyer, *Staff Attorney*
Michelle L. Browning, *Senior Operations Staff Assistant*

PROPOSED
CHAPTER 14 7.
~~OTHER FORMS OF GOVERNMENT FOR CERTAIN COUNTIES~~ COUNTY
MANAGER PLAN OF GOVERNMENT.

Chapter drafting note: Old Chapter 14, which contains provisions for two separate forms of county government, is divided into two chapters. Proposed Chapter 7 contains the provisions for the county manager plan of government, currently used by Arlington County, and proposed Chapter 4 contains the provisions for the county board form of government, and is not shown in this draft.

Article 1.

~~Applicability~~ Adoption of County Manager Plan.

~~§ 15.1-669. Application of Articles 1 to 4.~~

~~Subject to the election hereinafter provided, the provisions of Articles 1 (§ 15.1-669), 2 (§ 15.1-670 et seq.), 3 (§ 15.1-674 et seq.) and 4 (§ 15.1-689 et seq.) of this chapter shall be applicable to any county having a population of 500 inhabitants or more to the square mile, as shown by the last United States census, and to any county having less than sixty square miles of high land. Subject to the approval of a majority of the qualified voters of any such county who vote thereon, either of the two forms of county organization and government provided in Articles 2 and 3 of this chapter may be adopted. For the purpose of this section, the term "high land" in any county means the land therein above the low water line or mark of waters within and adjacent to the boundaries of such county.~~

Drafting note: Repealed; relevant portions of this section are relocated to § 15.2-701.

~~Article 2.~~

~~Modified Commission Plan.~~

~~§§ 15.1-670 through 15.1-673.~~

1 be the only elective county officials. The ~~county~~ board shall be a body corporate and as such
2 ~~shall have~~ has the right to sue and be sued in the same manner as is now provided by law for
3 boards of supervisors.

4 **Drafting note: No substantive change in the law. The provisions of the stricken**
5 **sentence are relocated to § 15.2-706. References to the trial justice and county judge are**
6 **obsolete.**

7
8 § ~~15.1-675~~ 15.2-703. Interference by members of ~~county~~ board in appointments and
9 removals of personnel.

10 Neither the ~~county~~ board nor any of its members shall in any manner dictate the
11 appointment or removal of any county administrative officers or employees ~~whom the~~ who are
12 appointed by the manager or any of his subordinates ~~are empowered to appoint, but.~~ However,
13 the ~~county~~ board may express its views and fully and freely discuss with the manager anything
14 pertaining to appointment and removal of such officers and employees. Except for the purposes
15 of inquiry and investigation, the board and its members shall deal with county officers and
16 employees who are subject to the direction and supervision of the manager solely through the
17 county manager, and neither the board nor any member thereof shall give orders either publicly
18 or privately to any such county officer or employee.

19 **Drafting note: No substantive change in the law.**

20
21 § ~~15.1-675.1~~ 15.2-704. Appointment of clerk of ~~county~~ board; powers and duties;
22 obligations and penalties.

23 The clerk of the ~~county~~ board shall be such qualified person as ~~may be designated by the~~
24 board designates. He shall be compensated in an amount set by the board and may employ such
25 deputies and assistants as the board authorizes. He shall exercise ~~all~~ the powers conferred and
26 perform ~~all~~ the duties imposed upon such officers by general law and shall be subject to the
27 obligations and penalties imposed by general law. He shall also perform such other duties as ~~may~~
28 ~~be imposed upon him by the county board~~ imposes upon him.

29 **Drafting note: No substantive change in the law.**

30
31 § ~~15.1-676~~ 15.2-705. Election of members of ~~county~~ board; filling vacancies.

1 A. ~~Notwithstanding the provisions of § 15.1-694, in~~ In any county operating as of
2 December 1, 1993, under the county manager plan provided for in this chapter, the members of
3 the ~~county~~ board shall be elected and vacancies on the board shall be filled as provided in this
4 section. The members of the board shall be elected from the county at large.

5 B. Two board members ~~of the county board~~ shall be elected at the November 1995
6 election to succeed the members whose terms are expiring, and one member each shall be elected
7 at the 1994, 1996, and 1997 November elections to succeed the members whose terms
8 respectively are expiring. Thereafter at each regular November election ~~there shall be elected~~
9 one or more ~~members of the county board~~ members shall be elected to succeed the ~~member or~~
10 members whose terms expire on or before January 1 next succeeding such election. The
11 members so elected shall be elected for terms of four years each, shall take office on January 1
12 next succeeding their election, and shall hold office until their successors are elected and qualify.

13 C. ~~When~~ Notwithstanding the provisions of § 24.2-226, when any vacancy occurs in the
14 membership of the ~~county~~ board, the judge of the circuit court of the county shall call a special
15 election for the remainder of the unexpired term to be held not less than ~~45~~ forty-five days and
16 not more than ~~60~~ sixty days thereafter; ~~provided that,~~ However, if any vacancy occurs within
17 180 days before the expiration of a term of office, the vacancy shall be filled by appointment by
18 a majority vote of the remaining members of the board within ~~30~~ thirty days of the occurrence of
19 the vacancy after holding a public hearing ~~with respect to~~ on the appointment. The appointment
20 shall be for the duration of the unexpired term.

21 **Drafting note: No substantive change in the law. The new sentence in subsection A**
22 **is relocated from § 15.1-691.**

23
24 ~~§ 15.1-677~~ 15.2-706. Duties of county manager; compensation; appointment of officers
25 and employees.

26 The administrative and executive powers of the county, including the power of
27 appointment of all officers and employees whose appointment or election is not otherwise
28 provided by law, are vested in ~~an official known as~~ the county manager, who shall be appointed
29 by the ~~county~~ board at its first meeting or as soon thereafter as practicable. The county manager
30 need not be a resident of the county or of the Commonwealth. He shall receive such
31 compensation as shall be fixed by the board. The officers whose election by popular vote is

1 provided for in Article VII, Section 4 of the Constitution of Virginia ~~and the trial justice or~~
2 ~~county judge~~, the school board and the superintendent of schools shall not be subject to
3 appointment but shall be selected in the manner prescribed by law. The heads of all departments
4 other than those hereinbefore referred to and excepted from the provisions of this section shall be
5 selected by the county board; ~~provided that~~. However, if a majority of the qualified voters voting
6 in the election required by § ~~15.1-668~~ 15.2-716 vote in favor thereof, then the heads of the
7 several county departments, other than those hereinbefore referred to and excepted from the
8 provisions of this section shall be appointed by the county manager.

9 **Drafting note: No substantive change in the law. The new sentence is relocated**
10 **from § 15.1-674 (15.2-702). The existing reference to § 15.1-668 is incorrect and should be**
11 **§ 15.1-686.**

12
13 § ~~15.1-678~~ 15.2-707. Bonds of county officers and employees.

14 The county officers ~~of the county~~ shall give such bonds as are now required by general
15 law, except that the bond of the treasurer shall be in such penalty as the court or judge ~~may~~
16 ~~require~~ requires, but not less than fifteen ~~per centum~~ percent of the amount to be received
17 annually by him. In addition ~~thereto~~, the county board ~~shall have power to~~ may fix and require
18 bonds in excess of the amounts so required, and ~~to~~ may require bonds of other county officers
19 and employees in ~~their~~ the board's discretion, conditioned on the faithful discharge of their
20 duties and the proper accounting for all funds coming into their possession.

21 **Drafting note: No substantive change in the law.**

22
23 § ~~15.1-679~~ 15.2-708. Term of office of county manager; salary and performance of
24 duties; acting manager in case of temporary absence or disability; removal or suspension.

25 The term of office of ~~such~~ the county manager shall expire on June 30 of each year ~~after~~
26 ~~1952, but except~~. Except as hereinafter provided, he shall be notified at least sixty days before
27 the expiration of his term if his services are not desired for the ensuing twelve ~~months'~~ -month
28 period. He shall receive such annual salary as the board may prescribe payable in monthly
29 installments from county funds. He shall devote his full time to the performance of the duties
30 imposed on him by law, and the performance of such other duties as ~~may be directed by the~~
31 board directs.

1 To perform his duties during his temporary absence or disability the manager may
2 designate by letter filed with the clerk of the board a qualified administrative officer of the
3 county to be acting manager. ~~In the event of failure of~~ If the manager fails to make such
4 designation, the ~~county~~ board may, by resolution, appoint an officer of the county to perform the
5 duties of the manager until he ~~shall return~~ returns or his disability ~~cease~~ ceases.

6 The board may at any time remove the county manager for neglect of duty, malfeasance
7 or misfeasance in office, or incompetency; ~~provided, that if~~ If a majority of the qualified voters
8 voting in the election required by § ~~15.1-668~~ 15.2-301 vote in favor thereof, the county manager
9 shall, ~~after December 31, 1952,~~ be appointed for an indefinite period and be subject to removal
10 by the county board at any time, any other provision of law to the contrary notwithstanding. ~~In~~
11 ~~case~~ If the board determines to remove the county manager ~~so appointed~~, he shall be given, if he
12 so requests, a written statement of the reasons alleged for the proposed removal and the right of a
13 hearing thereon at a public meeting of the board prior to the date on which his final removal ~~shall~~
14 ~~take~~ takes effect, ~~but pending~~. Pending and during such hearing the ~~county~~ board may suspend
15 him from office, provided that the period of suspension ~~shall~~ be limited to thirty days. The action
16 of the board in suspending or removing the county manager shall not be subject to review.

17 **Drafting note: No substantive change in the law.**

18
19 § ~~15.1-680.~~

20 ~~Repealed by Acts 1982, c. 30.~~

21
22 § ~~15.1-681~~ 15.2-709. Investigation of county officers or employees.

23 The ~~county~~ board ~~shall have full power to~~ may inquire into the official conduct of any
24 office, officer or employee under its control, and ~~to~~ investigate the accounts, receipts,
25 disbursements and expenses of any such office, officer or employee; ~~for~~. For these purposes it
26 may subpoena ~~persons who are~~ county employees ~~of such county~~ as witnesses, administer oaths
27 and require the production of books, papers and other evidence in their control; ~~and in case~~. If
28 any such witness fails or refuses to obey any such lawful board order ~~of the board~~, he shall be
29 deemed guilty of a misdemeanor.

30 **Drafting note: No substantive change in the law.**

1
2 § 15.1-691. Election of board by districts or at large.

3 ~~Unless otherwise provided in the election hereinafter provided for, the members of the~~
4 ~~board shall be elected from the county at large and not by districts. Subject to the result of such~~
5 ~~election, the magisterial districts in such counties are hereby abolished for all purposes and~~
6 ~~thereafter the county shall be operated as a unit. In the event that the majority of those voting~~
7 ~~thereon decide that the county board shall be elected by districts, the judge of the circuit court of~~
8 ~~the county shall, within thirty days thereafter, divide the county into five election districts and by~~
9 ~~order duly entered upon the minute book of the court fix and determine the metes and bounds of~~
10 ~~each of the districts, having in mind that in the establishment of such districts they shall be made~~
11 ~~as nearly equal as possible as to population, without dividing the thickly settled communities. In~~
12 ~~case of election by districts, the members of the board shall be duly qualified voters and residents~~
13 ~~of the districts they respectively represent and one shall be elected by the qualified voters of each~~
14 ~~district. In case of a decision to abolish the districts, the members of the board shall be qualified~~
15 ~~voters of the county. Removal from the county or district from which elected shall forthwith~~
16 ~~vacate the office held by any member.~~

17 **Drafting note: Repealed; provisions regarding election of board members can be**
18 **found in § 15.2-705.**

19
20 § 15.1-692 15.2-748. Annexation by city.

21 ~~When a county has once adopted one of the forms of government provided for in Articles~~
22 ~~2 (§ 15.1-670 et seq.) and 3 (§ 15.1-674 et seq.) of this chapter, no~~ No ~~part of its a county's~~
23 ~~territory may be annexed by any city unless the whole county be annexed. In such latter case the~~
24 ~~county shall not be annexed until the question of annexation has been first submitted to a~~
25 ~~referendum of the voters of such county and approved by a majority of those voting thereon.-~~

26 ~~The foregoing provisions of this section shall not apply to any county in Virginia having~~
27 ~~an area of more than forty and of less than sixty square miles of high land and a population,~~
28 ~~according to the last preceding United States census, of less than 600 inhabitants per square mile.~~
29 ~~For the purpose of this section, the term "high land" in any county means the land therein above~~
30 ~~the low water line or mark of waters within and adjacent to the boundaries of such county.-~~

COMPARABLE SECTIONS OF TITLE 15.1 AND TITLE 15.2 PROPOSED CHAPTER 7

NEW SECTION	OLD SECTION
§ 15.2-700	Added
§ 15.2-701	Added
§ 15.2-702	§ 15.1-674
§ 15.2-703	§ 15.1-675
§ 15.2-704	§ 15.1-675.1
§ 15.2-705	§ 15.1-676
§ 15.2-706	§ 15.1-677
§ 15.2-707	§ 15.1-678
§ 15.2-708	§ 15.1-679
§ 15.2-709	§ 15.1-681
§ 15.2-710	§ 15.1-682
§ 15.2-711	§ 15.1-683
§ 15.2-712	§ 15.1-684
§ 15.2-713	§ 15.1-684.1
§ 15.2-714	§ 15.1-684.2
§ 15.2-715	§ 15.1-685
§ 15.2-716	§ 15.1-686
§ 15.2-717	§ 15.1-686.01
§ 15.2-718	§ 15.1-686.5
§ 15.2-719	§ 15.1-686.6
§ 15.2-720	§ 15.1-686.7
§ 15.2-721	§ 15.1-687
§ 15.2-722	§ 15.1-687.01
§ 15.2-723	§ 15.1-687.1
§ 15.2-724	§ 15.1-687.2
§ 15.2-725	§§ 15.1-687.3, 15.1-687.20 and 15.1-687.24
§ 15.2-726	§ 15.1-687.4
§ 15.2-727	§ 15.1-687.5
§ 15.2-728	§ 15.1-687.6
§ 15.2-729	§ 15.1-687.7
§ 15.2-730	§ 15.1-687.8
§ 15.2-731	§ 15.1-687.9